

25SMCV03990 25SMCV03990

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV03990 Hearing Date: July 22, 2026 Dept: M

CASE NAME: Amic v. CAI

Acquisitions Venice LLC, et al.

CASE NO.: 25SMCV03990

MOTION: Motion

for Trial Preference

HEARING DATE: 7/22/2026

Legal

Standard

A party who is 70 years of age or older, or who reach that age during pendency of the action, may be entitled to preference if they establish to the court's satisfaction that: 1) she has a "substantial interest in the action as a whole"; and 2) her health is "such that preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP § 36(a), (c)(2).) In contrast to minor plaintiffs, trial priority is not mandatory and absolute merely because one of the parties is age 70. The court has discretion to determine the extent of that party's interest and find as a matter of fact the risk posed of that party's death or incapacity if trial is delayed. (CCP § 36(a).) However, if the factors are shown, the Court "shall" grant preference.

A trial must be set within 120

days even if opposing parties have not completed discovery or pretrial preparations. (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082,

1086.) Mere inconvenience to the court or to other litigants is irrelevant. (*Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 89-94; but see *Polibrid Coatings, Inc. v. Superior Court* (2003) 112 Cal.App.4th 920, 923-924 [when brought into case after over half the time to litigate has passed, party should be given “at least enough time” to “reasonably complete discovery and bring a summary judgment motion.”]).) Thus, the Court generally focuses on the moving parties’ burden, rather than striking a balance between the conflicting interests of opposing litigants.

A declaration supporting a motion for CCP section 36(a) preference “may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.” (CCP § 36.5.) Accordingly, an attorney’s declaration can consist entirely of hearsay and conclusions. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.)

Moreover, the court has the general discretionary power to grant priority to any case upon a showing of good cause, i.e. “that the interests of justice will be served by granting this preference.” (CCP § 36(e).)

Analysis

Plaintiff Penny Amic moves for an order setting trial pursuant to CCP section 36(a). Plaintiff explains that she was born on August 9, 1948, and as of the date of this hearing will be two weeks short of 78-years-old. (Amic Decl., ¶2.) There is no dispute Plaintiff has a substantial interest in this action as the sole plaintiff. Plaintiff has been living with Multiple Sclerosis (“MS”) for 40-years. (Id. ¶3.) The known effects of her MS include frequent and extreme fatigue, muscle weakness, constant numbness and tingling on the right lower extremity. The weakness and fatigue have slowly progressed over the years and the numbness and tingling has appeared over the last handful of years. (Id. ¶ 4.) Plaintiff notes that, if the trial is set without preference, then trial in this action may take place in 2028, when Plaintiff will be 80-years-old and the escalation of her condition will be unknown.

The Court requires a more specific statement that Plaintiff’s MS poses a risk that Plaintiff will die or become incapacitated if trial is delayed, or that preference is otherwise required to

prevent prejudice to Plaintiff's interest in this litigation. Plaintiff only states that she has MS, which she has apparently managed for 40 years. She does not explain whether her symptoms have been worsening such that any delay in trial will prejudice her interests.

Accordingly, the motion is
CONTINUED to August 11, 2026, at 8:30 a.m. Plaintiff may submit a supplemental declaration supporting the motion on or before 9 court days prior to the continued hearing date.